



CHAPTER xxiv.

An Act to confer additional powers upon the Midland Railway Company and upon the Norfolk and Suffolk Joint Railways Committee and upon the Midland and Great Northern Railways Joint Committee for the construction of works and the acquisition of lands and for other purposes. A.D. 1901.
[2nd July 1901.]

WHEREAS it is expedient that the Midland Railway Company (in this Act called "the Company") should be empowered to construct the harbour works widenings of railways and other works and to exercise the other powers in this Act mentioned and also to acquire retain hold and use additional lands for the purposes of this Act and for extending their station siding warehouse coal wharf depôt mineral goods and other accommodation and for other purposes connected with their undertaking:

And whereas it is expedient that the Norfolk and Suffolk Joint Railways Committee (in this Act called "the Norfolk and Suffolk Committee") should be empowered to make the deviation of railway and works and to acquire the lands in this Act mentioned in that behalf:

And whereas it is expedient that the Midland and Great Northern Railways Joint Committee (in this Act called "the Midland and Great Northern Committee") should be empowered to acquire the lands in this Act mentioned in that behalf:

And whereas plans and sections showing the lines and levels of the harbour works widenings and deviation of railways and other works by this Act authorised and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also books of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerks of the peace for the several counties and riding within which the said

A.D. 1901. — harbour works widenings and deviation of railways and other works will be made or are situate and the said lands are situate and those plans sections and books of reference are in this Act referred to as the deposited plans sections and books of reference respectively :

And whereas it is expedient that the time now limited by the Midland Railway (West Riding Lines) Act 1898 for the compulsory purchase of lands and for the construction of the railways by that Act authorised should be extended as provided by this Act :

And whereas it is expedient that further powers should be conferred upon the Company with respect to the sale or other disposal of lands acquired by them which are not or eventually may not be required for the purposes of their undertaking :

And whereas it is expedient that some of the powers and provisions of existing Acts relating to the Company should be amended and that further powers should be conferred upon the Company as provided by this Act :

And whereas it is expedient that the Company should be empowered to raise additional capital for the purposes of the railways and other works by this Act authorised and for other purposes of this Act and also for the making and enlargement of stations sidings warehouses engine sheds workshops coal wharves depôts mineral goods and other works and conveniences for the accommodation of the traffic on their railways and for completing the purchase of lands and buildings for any of the above-mentioned purposes and for providing additional plant and rolling stock block and interlocking signals and for the general purposes of their undertaking :

And whereas it is expedient that the Great Northern Railway Company the Great Eastern Railway Company and the several committees herein-before mentioned respectively should be empowered to apply their funds to the purposes of this Act in which they are respectively interested :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited for all purposes as the Midland Railway Act 1901.

2. The following Acts and parts of Acts are except where expressly varied by this Act incorporated with and form part of this Act (that is to say):—

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Incorporation of
general Acts.

The Lands Clauses Acts:

The Railways Clauses Consolidation Act 1845:

Part I. (relating to the construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863:

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters namely:—

The transfer or transmission of shares;

The borrowing of money by the Company on mortgage or bond; and

The conversion of borrowed money into capital:

Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:

The Harbours Docks and Piers Clauses Act 1847:

Provided always that the provisions of the Harbours Docks and Piers Clauses Act 1847 with respect to lifeboats and with respect to keeping a tide and weather gauge shall not be in force for the purposes of this Act except so far as may from time to time be required by the Board of Trade.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction:

Interpretation.

The expression "the harbour" means the harbour at Heysham authorised by the Midland Railway Act 1896;

The expression "the harbour works" means and includes the sea wall or embankment by this Act authorised and the works connected therewith;

The expression "the widenings" means the widenings of railways by this Act authorised.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if "local authority" were mentioned in those sections in addition to "company" or "society". Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which

Protection of gas and water mains of local authorities.

A.D. 1901. their revenues in respect of water or gas (as the case may be) are appropriated.

Power to
Company to
make
harbour
works.

5. Subject to the provisions of this Act the Company may in connexion with their harbour at Heysham make and maintain in the lines and according to the levels shown on the deposited plans and sections thereof respectively the sea wall or embankment herein-after described with all proper works and conveniences connected therewith and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto respectively as may be required for those purposes.

The works herein-before referred to and authorised by this Act to be made by the Company are—

A sea wall or embankment in the parish and urban district of Heysham and in the parish of Middleton in the rural district of Lancaster in the county of Lancaster in connexion with the Company's harbour works in Morecambe Bay being an extension of the Pier and Breakwater No. 2 authorised by the Midland Railway Act 1896 now in course of construction such sea wall or embankment commencing at a point on the said breakwater at or near the promontory known as Red Nab and terminating at or near the south-west corner of the field numbered on the 25-inch Ordnance map (1891 edition) 65 in the said parish of Middleton.

Power to
dredge &c.

6. Subject to the provisions of this Act the Company may reclaim acquire appropriate and use for the purposes of the harbour works the foreshore and bed of Morecambe Bay and the lands within the said sea wall or embankment and may dredge scour cleanse deepen and remove any rocks banks sand mud or shingle within or adjoining the harbour works or the access thereto and may make and maintain all necessary approaches sidings works and conveniences connected therewith.

Harbour
works to
form part of
existing
undertaking
of Company
at More-
cambe.

7. The harbour works shall for all purposes be part of the undertaking of the Company and the Company may demand collect and receive in respect thereof any dues rates and charges not exceeding the dues rates and charges authorised by the North Western Railway Act 1852 to be demanded collected and received by the North Western Railway Company in respect of the docks by that Act authorised.

Limits of
deviation.

8. In constructing the harbour works the Company may deviate laterally from the lines thereon as shown on the deposited

plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the said works as shown on the deposited sections to any extent not exceeding five feet upwards and ten feet downwards Provided that no deviation either lateral or vertical below high-water mark shall be made without the previous consent in writing of the Board of Trade.

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9. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Works below high-water mark not to be commenced without consent of Board of Trade.

10. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Company on in over through or across tidal lands or tidal water or of the intended site of any such work the Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Survey of works by Board of Trade.

11. If a work constructed by the Company on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Company and the amount of such expense shall be a debt due from the Company to the Crown and be recoverable as a Crown debt or summarily.

Abatement of work abandoned or decayed.

12. The Company shall at or near the works below high-water mark hereby authorised during the whole time of the constructing

Lights on works during construction.

A.D. 1901. altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve:

If the Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Company to exhibit lights.

13. The Company shall at the outer extremity of their works below high water exhibit and keep burning from sunset to sunrise such lights (if any) and take such steps for the prevention of danger to navigation as the Corporation of Trinity House of Deptford Strond shall from time to time direct:

If the Company fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Provision against danger to navigation.

14. In case of injury to or destruction or decay of the harbour works or any part thereof the Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House of Deptford Strond and shall apply to that Corporation for directions as to the means to be taken and the Company shall be liable to a penalty not exceeding ten pounds for every month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

As to future accretions.

15. If any land not required for the purposes of this Act shall at any time after the execution of any works under the authority of this Act become raised in height or reclaimed or by any other means cease to be subject to the flow and reflow of the ordinary tides or to be permanently covered with water (and that whether gradually or imperceptibly or otherwise) the Company shall not by virtue of the ownership of any lands which they are by virtue of this Act empowered to take or acquire have any estate right or interest in or to the land so raised in height or reclaimed or ceasing to be so subject or to be so covered as aforesaid by reason that such raising reclamation or cesser has been gradual or imperceptible or has been wholly or partially caused either by the works by this Act authorised or otherwise.

Company to construct and maintain road in

16. The Company shall as part of the works at Heysham by this Act authorised construct and thereafter maintain a proper and sufficient road in continuation of Money Close Lane in a southerly

direction so as to give a proper and sufficient carriage road to the foreshore of Middleton Bay and if any question shall hereafter arise as to the sufficiency of such new road or as to the due performance by the Company of their obligations under this enactment the same shall be determined at the instance of any person interested by two justices as if it were a difference under section 69 of the Railways Clauses Consolidation Act 1845.

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continuation
of Money
Close Lane
to foreshore.

17. If the harbour works are not completed within the period of seven years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Period for
completion
of harbour
works.

18. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections thereof respectively the widenings of railways herein-after described with all proper approaches stations sidings works and conveniences connected therewith and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto respectively as may be required for those purposes.

Power to
Company to
widen rail-
ways.

The widenings and works herein-before referred to and authorised by this Act to be made by the Company are—

A widening of the Company's railway from Derby to Leeds (to be called the "Ickles Viaduct Widening") three furlongs and five chains in length situate wholly in the parish and borough of Rotherham in the West Riding of the county of York commencing at or near the southern end of Ickles Viaduct and terminating at a point one chain or thereabouts measured in a northerly direction from the bridge carrying that railway over the Company's Sheffield and Rotherham Railway:

(Ickles
Viaduct
Widening.)

A widening of the Company's Chesterfield and Sheffield Railway (to be called the "Sheffield and Attercliffe Widening") one mile and four furlongs in length situate wholly in the parish city and county borough of Sheffield in the West Riding of the County of York commencing at a point on the said railway one chain or thereabouts measured in a north-easterly direction from the bridge carrying Granville Street over the said railway and terminating at a point on the said railway one chain or thereabouts measured in a north-easterly direction from the bridge carrying the said railway over Brightside Lane.

(Sheffield
and Atter-
cliffe Widen-
ing.)

19. Notwithstanding anything on the deposited plans to the contrary the Ickles Viaduct Widening shall be carried over the Sheffield and Rotherham Road by bridges of a clear span of not less

For protec-
tion of cor-
poration of
Rotherham.

A.D. 1901. — than fifty-three feet six inches and a clear headway over the road of seventeen feet.

For protec-
tion of
London and
North
Western
Railway
Company.

20. The following provisions for the protection of the London and North Western Railway Company (herein-after referred to as "the North Western Company") shall apply and have effect:—

- (1) If the Company shall in constructing the Sheffield and Attercliffe Widening by this Act authorised where the same shall be under by the side of and near to the authorised railway at Sheffield of the North Western Company now in course of construction require to execute any works affecting that railway such works shall be executed only in accordance with plans and sections to be previously submitted to and reasonably approved by Francis Stevenson or other the principal engineer for the time being of the North Western Company (herein-after referred to as "the principal engineer") and so as to keep open at all times the lines of railway and other works in connexion therewith of the North Western Company:
- (2) In constructing and maintaining the said widening where the same affects the said railway works or lands of the North Western Company the Company and their contractors servants agents or workmen shall not obstruct impede or interfere with the free and uninterrupted and safe user of the said railway or other works of the North Western Company:
- (3) The Company shall at all times maintain any works constructed under the powers of this Act affecting the North Western Company in substantial repair and good order to the reasonable satisfaction in all respects of the principal engineer and if and whenever the Company fail so to do the North Western Company may make or do as well in and upon the lands of the Company or the land acquired by them for the purposes of this Act as their own lands all such works and things as the principal engineer may reasonably think requisite in that behalf and the sum from time to time certified by such principal engineer to be the reasonable amount of such their expenditure shall be repaid to the North Western Company by the Company:
- (4) The Company shall not (except with the previous consent of the North Western Company under their common seal) take use or interfere with any land or property of that company but the Company may purchase and take and the North Western Company may and shall sell and grant accordingly an easement or right of using so much of the lands of that company for the construction of the said widening under and affecting the said railway of the North Western Company in accordance with the

provisions of this section The amount to be paid for the acquisition of such easement shall be settled in case of difference in the manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase of lands otherwise than by agreement :

- (5) In the event provided for by subsection 1 the Company shall on demand pay to the North Western Company all reasonable expenses of the employment by the North Western Company during the construction of the said portion of widening of a sufficient number of inspectors and watchmen to be appointed by the North Western Company for watching their said railway and works with reference to and during the execution of the works of the Company and for preventing as far as may be all interference danger and accidents from any of the operations or from the acts and defaults of the Company or their contractors or any person or persons in the employment of the Company or their contractors with reference thereto or otherwise :
- (6) The Company shall be responsible for and make good to the North Western Company all costs losses damages and expenses from time to time occasioned to the North Western Company or to their said railway or any other of their works and property or to the traffic on the said railway or to any company or person using the same by reason of the execution or failure of the works by this Act authorised or by any act or omission of the Company or any of the persons in their employment or their contractors agents or others and the Company shall effectually indemnify and hold harmless the North Western Company from all claims and demands upon or against them by reason of any such execution or failure or of any such act or omission as aforesaid :
- (7) The Company and the North Western Company may agree for any variation or alteration in the works in this section provided for or in the manner in which the same will be executed :
- (8) If any difference shall arise between the respective engineers of the Company and the North Western Company as to the reasonableness of the plans and sections herein-before provided for such difference shall be referred to and determined by an engineer to be mutually nominated by such respective engineers or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of the Company or the North Western Company.

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For protec-
tion of Great
Central
Railway
Company.

21. The powers of this Act with respect to the purchase and acquisition of lands otherwise than by agreement for the purposes of the Ickles Viaduct and Sheffield and Attercliffe Widenings hereby authorised and with respect to the making and maintaining of those widenings shall unless with the previous consent of the Great Central Railway Company (herein-after called "the Great Central Company") in writing under their common seal be exercised only subject to and in accordance with the following provisions:—

- (1) The Company shall not without in every case the previous consent of the Great Central Company under their common seal take use enter upon or interfere with any lands railways sidings or other works from time to time belonging to or worked by that company except only so far as shall be necessary for the purpose of making and maintaining the said widenings as the same are according to this Act to be constructed:
- (2) With respect to any land of the Great Central Company which the Company are by this Act authorised to use enter upon or interfere with the Company shall not purchase or take the same but the Company may purchase and take and the Great Central Company may and shall grant accordingly an easement or right of using the same for the purposes for which but for this enactment the Company might purchase and take the same:
- (3) The crossing of the respective widenings over and under the Great Central Company's railway and branches shall be effected at such points within the limits of deviation shown on the deposited plans and in such manner and according to such mode of construction as shall be reasonably approved of by the principal engineer of the Great Central Company Provided always that if the said principal engineer shall for the period of one month neglect or refuse to approve any plans sections or specifications submitted for his approval or shall disapprove the same and in case of the said principal engineer and the engineer of the Company failing to agree or of any difference arising between them then the said portions of railways and the said works shall be constructed according to plans sections and specifications to be submitted to and approved (subject however to the special provisions of this section) by an engineer to be agreed upon or in default of agreement to be appointed at the request of either the Company or the Great

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Central Company by the President of the Institution of Civil Engineers:

(4) The widening called the Ickles Viaduct Widening shall be carried over the Great Central Company's Rotherham Branch Railway by means of a girder bridge or bridges of three openings the middle opening to have a clear span of twenty-six feet measured on the square between the piers which shall be placed parallel to the existing main lines of the Great Central Railway and at equal distances from the rails thereof on either side the two side openings shall have a clear width between the piers or abutments thereof of not less than twenty-six feet for the northern opening and fifteen feet for the southern opening respectively measured on the square in each case. The headway throughout shall be not less than fourteen feet six inches clear above the surface of the rails of the Great Central Company's Rotherham Branch Railway at the point of crossing thereof:

(5) The widening called the Sheffield and Attercliffe Widening shall be carried underneath the Great Central Company's railway and sidings at Sheffield by means of underbridges or covered ways which shall extend from the boundary of the Great Central Company's property on the south to the northern end of the existing underbridge or covered way on the north. The Company shall also at any time when called upon to do so by the Great Central Company afford facilities for widening their railway at the point of crossing and for extending the underbridges and covered ways whether now existing or constructed under this Act for the purposes of such widening:

(6) The Company shall take all reasonable precautions in the execution of their works to prevent any interference with the free and uninterrupted and safe use in the ordinary manner and at the ordinary rate of speed of any railway siding or other work belonging to the Great Central Company:

(7) The Company shall bear and on demand pay to the Great Central Company the expense of the employment by that company during the execution of any work affecting any railway siding or other work of that company of a sufficient number of inspectors, watchmen and signalmen to be appointed by the Company for watching and signalling the same with reference to and during the execution of any such work of the Company and for preventing as far as may be all interference, obstruction, danger and accident from any of the operations or from the acts or defaults of the Company or their contractors or any person in the employ of the Company

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or of their contractors with reference thereto or otherwise and if by reason of the construction of the works by this Act authorised it shall become necessary to add to or to alter the signal or signals and telegraph appliances upon the said railways of the Great Central Company the same shall be so added to or altered by the Great Central Company and the reasonable expense thereof including any additional cost of maintenance which the Great Central Company may be put to by reason or in consequence thereof to be certified by the said principal engineer shall be repaid to that company by the Company :

(8) If by reason of the execution of any of the works or any proceedings of the Company or the failure of any such works or any act or omission of the Company or of their contractors or of any person in the employ of the Company or of their contractors or otherwise any railway siding or other work of the Great Central Company shall be injured or damaged such injury or damage shall be forthwith made good by the Company at their own expense or in the event of their failing so to do then the Great Central Company may make good the same and recover the expense thereof against the Company in any court of competent jurisdiction and if any interruption shall be occasioned to the traffic of or upon any such railway siding or other work of the Great Central Company by reason of any of the matters or causes aforesaid the Company shall pay to the Great Central Company all costs and expenses to which that company may be put as well as full compensation :

(9) The Company shall at all times maintain the bridges arches openings or other works by which their railway is carried under or over the railways sidings or other works of the Great Central Company in substantial repair and good order and condition to the reasonable satisfaction in all respects of the engineer of that company and if and whenever the Company fail so to do the Great Central Company may make and do in and upon as well the lands of the Company as their own lands all such works and things as that company reasonably think requisite in that behalf and the sum from time to time certified by their engineer to be the reasonable amount of such their expenditure shall be repaid to them by the Company :

(10) The Company shall also at all times maintain the bridge and other works by which the Ickles Viaduct Widening shall

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be carried over the railways and lands of the Great Central Company with the height and headway before mentioned and if from any causes whatsoever any subsidence should occur by which the level of such works be lowered then at any time the Company shall at their own cost whenever called upon by the Great Central Company to do so raise or lift the widenings and works over the railways and lands of the Great Central Company to the heights and levels above Ordnance datum at which they were originally constructed under the provisions of this Act :

(11) If in the opinion of the Great Central Company or in case of difference between them and the Company of an arbitrator to be appointed as herein-after provided it shall be necessary for the Great Central Company to purchase or pay compensation for any minerals required to be left unworked for the protection and safety of any works constructed under the powers of this Act or for any additional minerals beyond those which but for this Act would have been required to be so left unworked then the Company shall on demand pay to the Great Central Company all costs and expenses incurred by them in relation to any such purchase or payment of compensation and the amount of such costs and expenses or as the case may be the amount of the additional cost and expenses shall in case of difference be determined by arbitration as herein-after provided :

(12) If any difference shall arise between the respective engineers of the Company and the Great Central Company as to the reasonableness of the plans sections and specifications herein-before provided for or as to the true intent and meaning of this enactment or the mode of giving effect thereto such difference shall be referred to and determined by an engineer to be mutually nominated by such respective engineers or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party :

(13) The Company and the Great Central Company may agree upon any variation or alteration in the works in this section provided for or in the manner in which the same shall be executed.

22. For the protection of the lord mayor aldermen and citizens of the city of Sheffield (in this section referred to as "the corporation") the following provisions shall have effect with respect

For protection of corporation of Sheffield.

A.D. 1901. to the works authorised to be constructed and the powers by this Act conferred upon the Company within the city of Sheffield (that is to say) :—

(1) In constructing the Sheffield and Attercliffe Widening the Company shall only acquire so much of the lands numbered one hundred and seventy-six on the deposited plans in the city and county borough of Sheffield (which lands now form part of the highway depôt of the corporation) as shall be actually necessary for the purposes of the said widening and in no case shall the width of the strip of such land to be acquired by the Company exceed fifteen feet :

(2) The Company shall construct the extension of the bridge for carrying the said widening over Attercliffe Road and Sutherland Street in accordance with plans and sections to be previously submitted to and reasonably approved by the corporation and so that in the event of the Company executing the proposed widening on the north-westerly side of their existing railway the headway of such bridges shall not be less than the headway of the existing bridges namely twenty-two feet in the case of Attercliffe Road and twenty-one feet in the case of Sutherland Street and such works shall be similar in character and design to the existing bridges but in the event of the Company executing the proposed widening on the south-easterly side of their existing railway the headway of such bridges carrying the said widening over Attercliffe Road and Sutherland Street aforesaid shall not be less than twenty-one feet in the case of Attercliffe Road and twenty feet in the case of Sutherland Street throughout the whole length and width of the extended bridges and the roadways and footways under the extended bridges whether the said widening is effected on the north-westerly or south-easterly side of the Company's existing line shall be of not less width than the roadways and footways under the existing bridges :

(3) The Company shall construct the said widening over Princess Street in accordance with plans and sections to be previously submitted to and reasonably approved by the corporation and so as not in any way to interfere with or obstruct or lessen the width of Royds Mill Street at its junction with Princess Street and the Company shall not construct the extension of the bridge for carrying the said widening over Princess Street so as to widen the existing bridge more than twelve feet on the north-west side thereof neither shall any works of the

Company be so constructed as to in any way interfere with or diminish the width of Corby Street or Princess Street :

- (4) The Company shall construct the extension of each bridge for carrying the said widening over Brightside Lane with one clear span of the clear width of the said lane and so that the underside of the new girders shall be at a level three inches higher than the underside of the girders of the existing bridge :
- (5) Subject to the foregoing provisions of this section the span and headway of every bridge for carrying the said widening over roads or streets within the city and county borough of Sheffield shall be not less than the span and headway of existing bridges over the same roads and the width of no street shall be in any way diminished :
- (6) If the execution of the said widening shall interfere with any houses acquired by the Company or which by this Act they are authorised to acquire so as to render the light and air space insufficient to comply with the byelaws of the corporation such houses so interfered with shall be deemed to be new buildings within the meaning of the Public Health Acts and the Sheffield Corporation Act 1890 :
- (7) If the construction of the said widening or any of the works of the Company in connexion therewith shall cause or necessitate any interference with the River Don or the banks thereof or the weir across the same or the storm-water overflow near thereto such works shall be carried out to the reasonable satisfaction of the corporation at the cost of the Company and in accordance with plans and sections to be previously submitted to and reasonably approved by the corporation :
- (8) If by reason of the exercise of the powers of this Act any additional water mains pipes sewers or drains or any increased lengths or capacity thereof be rendered necessary the same shall be respectively provided laid and constructed by the corporation and all necessary alterations to sewers drains water electric light cable or other pipes wires or tramways shall be executed to the reasonable satisfaction of the corporation at the cost in all things of the Company :
- (9) If by reason of the exercise of the powers of this Act the corporation shall at any time incur additional cost in repairing or altering any existing water main pipe or apparatus or any existing sewer or drain electric cable or tramway such additional cost shall be repaid by the Company to the corporation :

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(10) Before the Company interfere with any existing sewer or drain they shall to the reasonable satisfaction of the corporation and at the cost of the Company and in accordance with plans and sections to be previously submitted and reasonably approved of by the corporation construct a sufficient substituted sewer or drain and connect the same with the sewer or drain so interfered with and any alteration or diversion of existing sewers or drains which may be deemed necessary by the corporation in consequence of the works of the Company shall be carried out in the same manner provided that any such construction alteration or diversion shall be executed at the cost of the Company by the corporation in lieu of the Company if the corporation shall so desire :

(11) If the Company construct any pier or abutment over any sewer of the corporation the Company shall at their own cost if so required by the corporation construct and maintain a good and sufficient culvert over such sewer so as to afford access thereto for the purpose of repairs :

(12) All streets the surface of which shall be disturbed by the Company shall be restored to the reasonable satisfaction of the corporation and at the cost in all things of the Company.

For protec-
tion of Duke
of Norfolk.

23. Notwithstanding anything in this Act contained or shown on the deposited plans the following provisions shall unless otherwise agreed in writing between the Most Noble Henry Duke of Norfolk (who and whose sequels in estate are included in the expression and are herein-after referred to as "the owner") and the Company have effect for the benefit and protection of the owner (that is to say) :—

(1)—(A) The Company shall not acquire any greater right or interest in the property numbered on the deposited plans 169A in the city and county borough of Sheffield (which property is in this subsection referred to as "Nunnery Colliery Branch") than an easement or right of constructing maintaining and using at all times a widening of the existing arch or opening under the Nunnery Colliery Branch (herein-after called "the widening of the arch") and for the purpose of assessing the compensation to be paid to the owner or his lessees (which expression "lessees" in this subsection includes any person having any term estate easement or interest in the Nunnery Colliery Branch under the owner) in respect of such easement or right the acquisition thereof shall be deemed to be a purchase and taking of lands otherwise than by agreement within the meaning of the Lands Clauses Acts and the amounts of such

compensation shall in case of difference be ascertained in manner provided by those Acts accordingly; A.D. 1901.

(B) The widening of the arch shall be constructed according to detailed plans and sections to be approved in writing by the engineer of the owner before the commencement of the works;

(C) The Company shall not interfere with alter or obstruct the Nunnery Colliery Branch or the passage of traffic along the same except at such reasonable times as may be necessary for the construction of the widening of the arch and as may be arranged with the owner and his lessees;

(D) The Company shall at all times maintain the arch or opening aforesaid when widened (herein-after called "the widened arch") in substantial repair and in good order and condition to the satisfaction of the owner and his lessees and if and whenever the Company fail so to do the owner may make and do as well within and upon the lands of the Company as within and upon the lands of the owner all such works matters and things as may be requisite in that behalf and the sum from time to time certified by the engineer of the owner to be the amount of the cost incurred by the owner in respect thereof shall be repaid to the owner by the Company;

(E) If any obstruction or interference with the free passage of traffic along the Nunnery Colliery Branch or the safe user thereof be caused by or during the construction of the widening of the arch or by the maintenance or want of maintenance of the widened arch the Company shall pay to the owner and his lessees all costs charges and expenses to which he or they shall thereby be put and shall make to the owner and his lessees full compensation for any loss sustained by the owner and his lessees respectively by or by reason of such obstruction or interference:

(2)—(A) The Company shall not acquire any greater portion of the properties numbered on the deposited plans 211 443 446 and 449 respectively in the city and county borough of Sheffield than shall be absolutely necessary for the purpose of making and erecting the additional abutments and piers required for widening the existing bridges of the Company in the immediate neighbourhood of such properties respectively;

(B) The widenings of the said bridges respectively shall be constructed according to detailed plans and sections to be

A.D. 190

reasonably approved by the engineer of the owner before the commencement of the works;

(c) The Company shall not alter or permanently obstruct or interfere with the weir included in No. 449 aforesaid or any of the sluices shuttles culverts conduits mains pipes and other works (all of which are in this subsection referred to as "the waterworks") situate on the said properties numbered as aforesaid 211 443 446 and 449 or in any way connected therewith or permanently or temporarily obstruct or interfere with the taking of water from the River Don by the owner or his lessees tenants or licencees or the return to the river of any water so taken or the existing access to the said properties or either of them or to the waterworks or do anything whereby the free flow of water through the waterworks may be either permanently or temporarily interfered with;

(d) The Company shall not in connexion with the proposed Sheffield and Attercliffe Widening alter or permanently obstruct or interfere with any intakes culverts mains or pipes by which water is carried and supplied to or from manufactories works or lands of the owner or his lessees tenants or licencees and shall at all times to the satisfaction of the owner maintain unobstructed and protect all or any such intakes culverts mains and pipes as may be found to exist;

(e) If any such alteration obstruction or interference as aforesaid is caused by the Company or if the Company fail to maintain and protect in manner aforesaid any such intake culvert main or pipe as aforesaid the Company shall pay to the owner and his lessees tenants and licencees and all other persons injuriously affected thereby all costs charges and expenses to which he or they shall thereby be put and shall make to the owner and his lessees tenants and licencees and all such other persons full compensation for any damage loss or inconvenience sustained by them respectively by or by reason of such alteration obstruction interference or failure to maintain and protect as aforesaid:

(3) In the event of the Company acquiring any portion of the property numbered on the deposited plans 435 in the city and county borough of Sheffield lying to the south-eastward of the line A to B marked upon the plan signed in triplicate by Robert Hamilton Few on behalf of the owner and John Allen McDonald on behalf of the Company the Company shall if so required by the owner serve notice to treat for

the whole of the property delineated and coloured red on the said plan lying to the south-eastward of the said line A to B: A.D. 1901.

(4) The Company shall not stop up or discontinue as a public thoroughfare Royds Lane or any part thereof or interfere therewith otherwise than by the erection of a bridge thereover:

(5) The Company shall bear and on demand pay to the owner the costs charges and expenses of the owner in connexion with the approval of any plans sections or specifications under this section and of any documents or things relating thereto and of any inspections which the engineer of the owner may from time to time think it necessary to make and of any certificates which such engineer may give in connexion therewith:

(6) Any difference or dispute between the Company and the owner relating to any matter contained in this section or arising under this Act and which is not in accordance therewith to be determined by arbitration in manner provided by the Lands Clauses Acts shall be determined by arbitration in manner provided by the Arbitration Act 1889.

24. The Sheffield and Attercliffe Widening by this Act authorised shall when constructed be subject to the rights and powers conferred upon the Lancashire Derbyshire and East Coast Railway Company the Sheffield District Railway Company and the Great Eastern Railway Company respectively under the agreement dated the fifteenth day of July one thousand eight hundred and ninety-eight scheduled to and confirmed by the Sheffield District Railway Act 1898 over the portion of the Midland Railway of which it is a widening. Extending rights over existing railway to Sheffield and Attercliffe Widening.

25. For the protection of the Sheffield and South Yorkshire Navigation Company (in this section called "the navigation company") the following provisions shall unless otherwise agreed between the Company and the navigation company have effect (that is to say):— For protection of Sheffield and South Yorkshire Navigation Company.

(1) The bridge or bridges for carrying the Ickles Viaduct Widening over the navigation of the navigation company shall be constructed and maintained by the Company as a girder bridge or girder bridges with a clear span of not less than sixty-five feet and a clear headway throughout of not less than sixteen feet six inches above the ordinary water level of the navigation:

(2) The Company shall construct and maintain the bridge or bridges carrying the Sheffield and Attercliffe Widening by this

A.D. 1901.

Act authorised across the Sheffield Canal of the navigation company as a girder bridge or girder bridges each of one span with a clear width between the abutments of not less than forty-two feet and nine inches measured on the square and the underside of the girders of the said bridge or bridges shall be constructed at a level of not less than three inches above the level of the underside of the girders of the existing bridge carrying the Chesterfield and Sheffield Railway over the said canal at Attercliffe. The abutments of such bridge or bridges shall be constructed parallel with the centre line of the said canal :

- (3) If at any time hereafter the Company reconstruct the existing bridge carrying the said Chesterfield and Sheffield Railway over the said canal they shall carry out such reconstruction so that the underside of the girders of the reconstructed bridge shall be at the same level as the underside of the girders of the widened bridges by this Act authorised :
- (4) The Company as well during the construction as during any repairs of the bridges shall leave the navigable waterway and towing-path free and uninterrupted except so far as shall be reasonably agreed between the navigation company and the Company :
- (5) All works crossing or affecting the navigation shall be constructed and maintained so that the traffic of the navigation shall not except as herein expressly provided be in any way obstructed impeded or interfered with and such maintenance shall be effected to the reasonable satisfaction of the engineer of the navigation company but in all things at the expense of the Company :
- (6) The Company shall bear and on demand pay to the navigation company the reasonable expense of the employment by the navigation company of a sufficient number of inspectors and watchmen to watch the navigation during the construction of the works by this Act authorised crossing or in any way affecting the navigation and for preventing any such obstruction or interference or any danger or accident from the acts or default of the Company or their contractors or the servants workmen or other persons in their respective employ :
- (7) If by reason of the execution or maintenance of any of the works or any proceedings of the Company or any act or omission of the Company or their contractors or of any officer servant or workman or other person employed by the Company or such contractors the navigation or any of the works thereof

be injured or damaged such injury or damage shall forthwith be made good by the Company at their own cost and in default thereof the navigation company may make good the same and recover the reasonable cost thereof: A.D. 1901.

(8) The Company shall indemnify the navigation company for any loss or damage they may suffer and for any compensation they may be required to pay for any such obstruction interruption or interference with the traffic of the navigation or any accident which shall have been occasioned by any such act or default as in this section is mentioned:

(9) Any works which may be constructed under the powers of this Act over or affecting any of the waterways or canals of the navigation shall be carried out under the supervision and to the reasonable satisfaction of the engineer of the navigation company and in accordance with plans sections and specifications previously submitted to and reasonably approved of by such engineer:

(10) Notwithstanding anything contained in this Act or shown upon the deposited plans the Company shall not enter upon take or use any lands belonging to the navigation company except by agreement with the navigation company but the Company may purchase and take and the navigation company shall sell and grant to the Company accordingly an easement or right of using the same so far as may be necessary for the purpose of carrying the railways across the navigation:

(11) If any difference arise between the Company and the navigation company under this section such difference shall be determined by an engineer to be appointed (unless otherwise agreed on) on the application of either party by the President of the Institution of Civil Engineers but nothing in this Act shall be deemed to enable the said arbitrator to direct that any work shall be made of less dimensions than by this section is prescribed in that behalf.

26. The widenings shall for the purposes of maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) be part of the railway of the Company as if the same had been part of the Midland Railway at the date of the passing of the Midland Railway Company (Rates and Charges) Order Confirmation Act 1891 and shall for all other purposes be part of the undertaking of the Company as authorised by the Midland Railway Consolidation Act 1844. Rates and charges for widenings.

27. The Company may make the arches of the bridge for carrying the widening over the road next herein-after mentioned of Height and span of bridge.

A.D. 1901. any height and spans not less than the height and spans herein-after mentioned in connexion therewith (that is to say) :—

No. on deposited Plans.	Parish or other Area.	Description of Road.	Height.		Span.	
452	City and county borough of Sheffield.	Brightside Lane	ft. 13	in. 11	ft. 8 3 8	in. 4 6 4 } three spans.

Power to make foot-paths.

28. Subject to the provisions of this Act the Company may in the lines shown upon the deposited plans (and so far as the same are shown on the deposited sections in accordance with the levels shown on those sections) make the new footpaths herein-after described with all proper works and conveniences connected therewith and may exercise the powers herein-after mentioned and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto as may be required for those purposes (that is to say) :—

(New foot-path at Killamarsh.)

The Company may make a new footpath in the parishes of Eckington and Killamarsh in the county of Derby commencing at a point on the existing footpath from Eckington to Beighton on the west side of the level crossing by that footpath of the Company's railway from Derby to Leeds 15 chains or thereabouts south of Killamarsh Station and terminating at a point on the said footpath at or near the bridge carrying the Holbrook Colliery branch of the Great Central Railway Company over the same at a point twelve chains or thereabouts north of the said station and may stop up and discontinue and extinguish all rights of way over so much of the existing footpath as lies between the commencement and termination of the said new footpath :

(New foot-path at Dore.)

The Company may make a new footpath in the parish of Norton in the county of Derby commencing at a point on the existing footpath and occupation road crossing over the north-western end of the Bradway Tunnel on the Company's Chesterfield and Sheffield Railway one and a half chains or thereabouts measured in a southerly direction from the north-west face of the said tunnel and terminating at a point on the aforesaid footpath and occupation road ten chains or thereabouts measured in a north-westerly direction from the point of commencement of the proposed new footpath and may stop up and discontinue and extinguish all rights of way over so much of the existing public

footpath as lies between the commencement and termination of the said new footpath : A.D. 1901.

The Company may make a new footpath in the parish of Sundon in the county of Bedford commencing by a junction with the existing public footpath leading from Sundon to Toddington which crosses on the level the railway of the Company from London to Bedford near Forder's Lime Works at a point on the said footpath nine and a half chains or thereabouts measured in a south-easterly direction from the said level crossing and terminating by a junction with the said existing public footpath at a point twenty chains or thereabouts measured in a north-westerly direction from the said level crossing and may stop up and discontinue and extinguish all rights of way over so much of the said existing footpath as lies between the points of commencement and termination of the said new footpath. (New foot-path at Sundon.)

29. Nothing contained in this Act shall prejudice or affect any existing public rights of way over the level crossing which is shown on the deposited plans at a point about seven and a half chains to the south of the point at which the said existing footpath from Sundon to Toddington crosses the railway of the Company on the level. As to rights of way over level crossing at Sundon.

30. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate to the purposes of extending their stations sidings warehouses engine sheds workshops coal wharves depôts mineral goods and other works and conveniences for the accommodation of their traffic and for providing accommodation for persons belonging to the labouring classes who may be displaced under the powers of this Act and for other purposes connected with their undertaking all or any of the lands houses and buildings following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto and may exercise the powers herein-after mentioned (that is to say) :— Power to acquire lands for general purposes.

In the county of Derby—

Lands in the parish and urban district of Fairfield on the south-east side of and adjoining the Company's property : (Lands and footpaths at Fairfield.)
And the Company may alter and extend the authorised diversion of the footpath from Browndge Lane to Fairfield which crosses the London and North Western Railway at the north end of the engine shed and may carry the same along the north and east sides of the said lands and may

1901.

(Lands and
footpaths at
Heanor and
Codnor
Park.)

stop up and divert and carry along the south and east side of the said lands so much of the existing footpath from Lightwood Road to Fairfield as crosses the said lands and may discontinue and extinguish all rights of way over so much of the said footpaths as are proposed to be diverted :

Lands in the parish of Codnor and Loscoe in the urban district of Heanor and in the parish of Codnor Park lying on both sides of and adjoining the Company's railway from Trent to Clay Cross and south of and near to the junction with that railway of the branch railway of the Great Northern Railway Company at Codnor Park :

And the Company may make two new footpaths viz. :—

- (1) A footpath commencing by a junction with the public footpath from Codnor to Westwood at a point two chains or thereabouts measured in a westerly direction from the level crossing of that footpath by the said railway and terminating by a junction with the same footpath at a point two and a half chains or thereabouts measured in an easterly direction from the said level crossing ; and
- (2) A footpath commencing by a junction with the public footpath from Stoneyford to Ironville at a point two chains or thereabouts measured in a south-easterly direction from the point where that footpath crosses the said footpath from Codnor to Westwood and terminating by a junction with the intended new footpath No. 1 at a point thereon one chain or thereabouts measured in a south-westerly direction from the said level crossing and may stop up and discontinue and extinguish all rights of way over (1) So much of the said existing footpath from Codnor to Westwood as lies between the commencement and termination of the proposed new footpath No. 1 and may appropriate to the purposes of the Company so much thereof as lies between the boundaries of the Company's property and (2) So much of the footpath which passes through the occupation road bridge under the Company's said railway near Codnor Park Wharf as lies between the said footpath from Stoneyford to Ironville and the said footpath from Codnor to Westwood.

In the county of Nottingham—

(Mansfield.)

Lands in the parish and borough of Mansfield lying on the south-east side of and adjoining the Company's railway from Nottingham to Worksop near to and south-west of the Mansfield Station thereon ;

Lands in the parish and urban district of Carlton lying on the south-east side of and adjoining the Company's railway from Nottingham to Lincoln at and near the Carlton and Netherfield Station thereon and other lands in the same parish and urban district lying on the north-west side of and adjoining the said railway at and near the said station and on the north-east side of and adjoining Station Street. A.D. 1901.
(Carlton.)

In the county of Stafford—

Lands in the parish of Branstone and borough of Burton-upon-Trent lying on the north-west side of and adjoining the Company's railway from Birmingham to Derby near the Branstone Sidings. (Burton-upon-Trent.)

In the county of Leicester—

Lands in the parish and county borough of Leicester lying on the south-east side of and adjoining the Company's railway from Leicester to Derby between Forest Road and Gipsy Lane. (Leicester.)

In the county of Gloucester—

Lands in the parish of Westerleigh situate on both sides of and adjoining the Company's railway from Bristol to Gloucester north of and near to the level crossing by the said railway of Broad Lane known as Dodmoor Green Crossing. (Yate.)

31.—(1) If the Company shall at any time hereafter erect buildings or execute works upon lands in the urban district of Carlton acquired under the powers of this Act which will in any way affect or interfere with the outfall sewer of the mayor aldermen and citizens of the city of Nottingham (in this section called "the corporation") passing under a portion of such lands they shall provide a culvert or archway for such sewer having a clear span of not less than fifteen feet and a headway of not less than seven feet six inches from the invert to the underside of the arch and any work affecting the said sewer shall be constructed according to such plans and sections and at such levels and shall be carried out in such manner as shall be reasonably approved of by the engineer for the time being of the corporation. For protection of corporation of Nottingham.

(2) The provisions contained in subsections (12) (13) (14) and (16) of section 27 of the Midland Railway Act 1897 shall extend and apply to the works by this Act authorised as if those provisions had been expressly re-enacted in this Act with reference thereto.

32. For the protection of the Great Western Railway Company (in this section called "the Great Western Company") the following provisions shall unless otherwise agreed have effect with respect to the lands in the parish of Westerleigh in the county of Gloucester For protection of Great Western Railway Company.

A.D. 1901. by this Act authorised to be acquired by the Company (that is to say) :—

- (1) The Company shall not enter upon or interfere with the railway lands or works of the Great Western Company or execute any works whatever under or over or affecting the same until the Company shall have delivered to the Great Western Company plans and drawings of such intended works and those plans and drawings shall have been approved in writing by the principal engineer of the Great Western Company or in the event of his failure for fourteen days after the delivery of the plans and drawings to approve the same until the same shall have been approved by an engineer to be appointed on the application of the Company by the Board of Trade and all the intended works shall be executed by the Company at their sole expense in all things according to such approved plans and drawings and to the reasonable satisfaction of the said engineer of the Great Western Company or in case of difference of an engineer to be appointed as herein-after provided :
- (2) The Company shall bear and on demand pay to the Great Western Company the reasonable expenses of the employment by them during the construction of any works over and adjacent to the railway and lands of the Great Western Company of a sufficient number of inspectors signalmen or watchmen to be appointed by them for watching their railways and works and the conduct of the traffic thereon with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Company with reference thereto or otherwise :
- (3) Notwithstanding anything in this Act contained the Company shall from time to time be responsible for and make good to the Great Western Company all losses costs damages and expenses which may be occasioned to them or any of their works or property or to the traffic on their railways or to any company or persons using the same or otherwise during the execution or by reason of the failure of any of the intended works or of any act default or omission of the Company or of any persons in their employ or of their contractors or otherwise and the Company shall effectually indemnify and hold harmless the Great Western Company from all claims and demands upon or against them by reason of such execution or failure and of any such act default or omission :

- (4) The Company shall at their sole expense at all times maintain the bridges arches openings and other works to be constructed under the railway works or lands of the Great Western Company in substantial repair and good order and condition to the reasonable satisfaction in all respects of the engineer of the Great Western Company and if and whenever the Company fail so to do after one month's notice from the Great Western Company or in case of urgency the Great Western Company may make and do in and upon as well the lands of the Company as their own lands all such works and things as the Great Western Company shall think requisite in that behalf for ensuring such repair and the sum from time to time certified by the engineer of the Great Western Company to be the amount of the expenditure reasonably incurred in that behalf shall be repaid to them by the Company :
- (5) The Company shall not in any way obstruct or interfere with the traffic passing along the railway of the Great Western Company and if by reason of any works or proceedings of the Company there shall be any obstruction or interference with the railways of the Great Western Company so as to impede or prevent the convenient passage of engines and carriages along the same the Company shall pay to the Great Western Company the sum of twenty pounds per hour during which any such obstruction or interference shall continue :
- (6) With respect to any lands of the Great Western Company which the Company are by this Act authorised to purchase take use enter upon or interfere with the Company shall not purchase or take any greater or other estate or interest in any such lands than an easement or right of using such lands in perpetuity for the purposes for which but for this enactment the Company might purchase and take the same and the provisions of this Act and of the Acts incorporated therewith shall be construed and apply accordingly :
- (7) The Company shall pay to the Great Western Company by way of purchase or compensation for the rights and easements to be acquired under the provisions of this Act such an amount as may be agreed upon or in the event of difference as may be determined by arbitration under the provisions of the Lands Clauses Acts relating to the purchase of lands otherwise than by agreement :
- (8) Before the Company shall in any way interfere with the accommodation road which crosses under the Great Western Company's railway and which is situate in the property

A.D. 1901.

numbered on the deposited plans 3 in the said parish of Westerleigh they shall construct a new road in place of it to the satisfaction of the engineer of the Great Western Company :

- (9) If any dispute shall arise between the Great Western Company and the Company respecting the matters and provisions aforesaid or any of them such dispute shall be settled by an arbitrator to be agreed upon between the parties or in case of difference to be appointed on the application of either party by the President of the Institution of Civil Engineers.

Power to
Norfolk and
Suffolk Com-
mittee to
make devia-
tion of
railway.

33. Subject to the provisions of this Act the Norfolk and Suffolk Committee may make and maintain in the lines and according to the levels shown on the deposited plans and sections thereof the deviation of railway herein-after described with all proper approaches stations sidings works and conveniences connected therewith and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto respectively as may be required for that purpose.

The deviation of railway herein-before referred to and authorised by this Act to be made by the Norfolk and Suffolk Committee is—

A deviation one mile four furlongs and nine chains in length of the Railway No. 1 authorised by section 21 of the Midland Railway Act 1896 (herein-after referred to as “ the Cromer and Mundesley Railway No. 1 ”) commencing in the parish and urban district of Cromer in the county of Norfolk by a junction with the said authorised railway at a point on the east side of the public road leading from Cromer to Holt eleven chains or thereabouts south-west of the mile post on that road indicating one mile from Cromer and terminating in the parish of Northrepps in the said county by a junction with the said authorised railway at a point three and a half chains or thereabouts west of the road leading from Cromer to Northrepps and five and a half chains or thereabouts north-west of Green Drive Cottage on that road.

For protec-
tion of
Cromer
Urban Dis-
trict Council.

34. In constructing the deviation of the Cromer and Mundesley Railway by this Act authorised over the public road known as Hall Road shown on the deposited plans at one mile fifty chains the Norfolk and Suffolk Committee will construct footpaths six feet in width commencing at the boundary of the committee's property on either side of the bridge and continued round the outer side of each of the central piers so as to leave the centre span of twenty-six feet

available for vehicular traffic and where the said deviation crosses over the public road known as Roughton Road at or about one mile seventy-one chains on the deposited plans the said committee will construct the bridge with one span of thirty-six feet clear on the square and of a height of not less than sixteen feet at any part thereof measured from the existing surface of the road. A.D. 1901.

35. Notwithstanding anything contained in this Act or shown upon the deposited plans the Norfolk and Suffolk Committee shall not construct any part of the deviation by this Act authorised of the said Cromer and Mundesley Railway No. 1 within a distance of one hundred and twenty feet of the nearest point of the footings of the water tower of the Cromer Waterworks Company Limited in the parish of Northrepps except with the consent in writing of that company. For protec-
tion of
Cromer
Waterworks
Company
Limited.

36. The following further provisions for the protection of the Great Eastern Railway Company (herein-after referred to as "the Great Eastern Company") shall unless otherwise agreed in writing under the respective common seals of the Norfolk and Suffolk Committee and the Great Eastern Company apply and have effect:— For protec-
tion of Great
Eastern
Railway
Company as
to deviation
of Cromer
and Mundes-
ley Railway
No. 1.

- (1) The Cromer Junction No. 1 authorised by section 31 of the Great Eastern Railway Company and Midland and Great Northern Railways Joint Committee Act 1898 in lieu of terminating by a junction with the Cromer and Mundesley Railway No. 1 in the manner provided in that Act shall terminate by a junction with the deviation by this Act authorised of the Cromer and Mundesley Railway No. 1 in the position and manner shown on a plan dated the twenty-seventh day of March one thousand nine hundred and one and signed by Alexander Ross on behalf of the Norfolk and Suffolk Committee and by John Wilson on behalf of the Great Eastern Company and the Great Eastern Company shall have and be entitled to exercise all such rights powers and privileges over and upon the deviation so by this Act authorised as they had and might have exercised over and upon the portion to be abandoned under the provisions of this Act of the Cromer and Mundesley Railway No. 1:
- (2) The Norfolk and Suffolk Committee shall so far as they can lawfully under the powers of this Act or of any other Act or Acts enabling them in that behalf purchase and acquire all lands and property necessary for enabling the Great Eastern Company to construct the junction referred to in the preceding subsection (1) and shall grant to the Great Eastern Company

A.D. 1901.

upon and subject to such terms and conditions as may be agreed or as may be determined by arbitration all necessary easements over the lands to be so acquired and any other lands for the time being belonging to the Norfolk and Suffolk Committee for the purposes of enabling the Great Eastern Company to effect such junction. If the Great Eastern Company find it necessary to apply to Parliament for further powers as to the execution of works or the acquisition of lands or for any other purpose in order to enable them to effect such junction the Norfolk and Suffolk Committee shall not oppose such application except so far as may be necessary for making any amendments in the Bill by which such application shall be made for the reasonable protection of the rights and interests of the Norfolk and Suffolk Committee and shall support such application :

(3) The provisions of section 29 of the Midland Railway Act 1896 for protection of the Great Eastern Company shall extend and apply mutatis mutandis with respect to and in the case of the deviation by this Act authorised of the Cromer and Mundesley Railway No. 1 and the purchase and acquisition of lands otherwise than by agreement for and the making and maintaining of the said deviation as fully as if the said provisions had been mutatis mutandis repeated in this Act :

(4) Any difference between the Norfolk and Suffolk Committee and the Great Eastern Company with respect to anything in this section shall be determined in accordance with the Arbitration Act 1889 by an independent engineer to be agreed upon between the Norfolk and Suffolk Committee and the Great Eastern Company or in case of difference to be appointed by the Board of Trade.

Rates and
charges on
deviated
railway.

37. The deviation by this Act authorised of the Cromer and Mundesley Railway No. 1 shall for the purposes of tolls rates and charges and for all other purposes be deemed to be part of the said railway.

Committee
not liable
to repair
surface of
road level of
which is not
permanently
altered.

38. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Norfolk and Suffolk Committee shall not be liable to maintain the surface of any road or public highway which shall be carried over the railways or any of them by a bridge or bridges or the immediate approaches thereto except so far as the level of such road or highway or approaches is permanently altered.

39. If the deviation of the Cromer and Mundesley Railway No. 1 by this Act authorised be not completed within the period of five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Norfolk and Suffolk Committee for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

A.D. 1901.

Period for completion of deviation.

40. If the Norfolk and Suffolk Committee fail within the period limited by this Act to complete the said deviation the said committee shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the same is completed and opened for the public conveyance of passengers or until the sum received in respect of such penalty shall amount to five per centum on the estimated cost of the said deviation :

Imposing penalty unless deviation opened.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in the third section of the Railway and Canal Traffic Act 1854 :

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as herein-after provided :

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Norfolk and Suffolk Committee was prevented from completing or opening the said deviation by unforeseen accident or circumstances beyond their control Provided that want of sufficient funds shall not be held to be a circumstance beyond their control.

41. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the said deviation or any portion thereof or who may have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Norfolk and Suffolk Committee by this Act and for which injury or loss no compensation or inadequate compensation shall have been paid

Application of penalty.

A.D. 1901. — and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit :

If no such compensation shall be payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Norfolk and Suffolk Committee is insolvent or the railway or railways in respect of which the penalty shall have been incurred or any part thereof has or have been abandoned be paid to such receiver or be applied in the discretion of the court as part of the assets of the said committee for the benefit of the creditors thereof and subject to such application shall be repaid to the said committee.

Abandonment of portion of railway.

42. The Norfolk and Suffolk Committee shall abandon the construction of so much of the said authorised Cromer and Mundesley Railway No. 1 as will be rendered unnecessary by the construction of the deviation thereof by this Act authorised.

Compensation for damage to land by entry &c. for purposes of railway abandoned.

43. The abandonment by the Norfolk and Suffolk Committee under the authority of this Act of the said portion of railway shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the said committee on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the said committee to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the Midland Railway Act 1896.

Compensation to be made in respect of portion of railway abandoned.

44. Where before the passing of this Act any contract has been entered into or notice given by the Norfolk and Suffolk Committee for the purchasing of any land for the purposes of or in relation to any portion of the railway or works authorised to be abandoned by this Act the said committee shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the said committee to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively

by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation paid for lands taken under the provisions thereof. A.D. 1901.

45. Subject to the provisions of this Act the Midland and Great Northern Committee may enter upon take use and appropriate for the purposes of or connected with their undertaking the lands following or some of them delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say) :— Power to Midland and Great Northern Committee to acquire lands.

In the county of Lincoln (parts of Holland)—

Lands in the parish and urban district of Sutton Bridge lying on the north-west side of and adjoining the railway of the said committee from Peterborough to Lynn and near to and west of the junction of the said railway with the railway of the said committee from Spalding to Lynn. (Sutton Bridge.)

In the county of Norfolk—

Lands in the parish of West Walton lying on both sides of and adjoining the railway of the said committee from Peterborough to Sutton Bridge at and near the Ferry Station thereon ; (Ferry.)

Lands in the parish of Hillington in the rural district of Freebridge Lynn lying on both sides of and adjoining the railway of the said committee from Lynn to Melton Constable and at and west of the Hillington Station thereon ; (Hillington.)

Lands in the parish of Roydon and in the parish of Congham lying on both sides of and adjoining the railway of the said committee from Lynn to Melton Constable and on both sides of the bridge carrying the public road from King's Lynn to Congham over the said railway ; (Grimston.)

Lands in the parish of Helhoughton and in the parish of Tatterford in the rural district of Walsingham lying on the north-west and south-east sides of and adjoining the railway of the said committee from Lynn to Melton Constable at and near the Raynham Park Station thereon ; (Raynham Park.)

Lands in the parishes of Barney and Thursford in the rural district of Walsingham lying on both sides of and adjoining the railway of the said committee from Lynn to Melton Constable and west of and near to the Thursford Station thereon ; (Thursford.)

Lands in the parish of Hemsby lying on the south-west side of and adjoining the railway of the said committee from Melton

A.D. 1901.

Constable to Great Yarmouth and near to and adjoining the Hemsby Station thereon ;

(Potter Heigham.)

Lands in the parish of Potter Heigham lying on the south-west side of and adjoining the railway of the said committee from Melton Constable to Great Yarmouth at and near to the Potter Heigham Station thereon ;

(Great Yarmouth.)

Lands in the parish and county borough of Great Yarmouth lying on both sides of and adjoining the Yarmouth Union Line and the authorised Lowestoft Junction Railway of the said committee between Caister Road and Apollo Walk and other lands in the said parish and county borough lying on the west side of and adjoining the said line and between Apollo Walk and Ormond Road.

Provisions
as to repair
of footpaths
&c.

46. Subject to the provisions of this Act the new footpaths to be made under the authority of the section of this Act of which the marginal note is "Power to make footpaths" shall when made and completed be repaired and maintained by and at the expense of the same parties in the same manner and to the same extent as other footpaths of the same nature within the parish in which any such footpath will be situate are from time to time liable to be repaired or maintained :

If any question shall arise between the Company and any of such parties as to the due completion of any such footpath such question shall from time to time be determined by two justices on the application of either of the parties in difference and after not less than seven days' notice to both parties of the sitting of such justices for the purpose and the certificate of such justices of the due completion of such footpath shall be conclusive evidence of the fact so certified.

As to vesting
of site and
soil of
portions of
footpaths &c.
stopped up.

47. The site and soil of any footpath or portion thereof by this Act authorised to be stopped up and the fee simple and inheritance thereof (except where by this Act otherwise provided) if the Company are or if and when under the powers of this Act or of any other Act relating to the Company already passed they become the owners of the lands on both sides thereof shall from the time of the stopping up thereof respectively but subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway be wholly and absolutely vested in the Company for the purposes of their undertaking.

Extinguish-
ment of
rights of
way &c.

48. Subject to the provisions of this Act all rights of way over and along the portions of highways which may under the provisions

of this Act be stopped up and discontinued and over and along any of the lands which may under those provisions be acquired by compulsion shall be and the same are as from the stopping up or discontinuance of the said portions of highways or the purchase or acquisition of the said lands hereby extinguished. A.D. 1901.

49. The Company shall not stop up any existing footpath until they shall have completed to the satisfaction of two justices and opened to the public the footpath (if any) to be substituted therefor. Footpaths not to be stopped up until substituted work completed.

50. The powers granted by this Act for the compulsory purchase of lands shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

51. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or the Norfolk and Suffolk Committee or the Midland and Great Northern Committee (as the case may be) who are by this Act authorised to acquire any lands any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting lands and the provisions of the said Acts with respect to lands and rentcharges as far as the same are applicable in this behalf shall extend and apply to such grants easements rights and privileges as aforesaid respectively. Power to owners to grant easements &c.

52. And whereas in the construction of the widenings and works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other greater or less portion thereof can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:— Owners may be required to sell parts only of certain properties.

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in Part I. of the schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties

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the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other greater or less portion thereof (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and

expenses reasonably and properly incurred by him in consequence of such notice : A.D. 1901.

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

The provisions of this section shall extend and apply to the Midland and Great Northern Committee in respect of the properties described or referred to in Part II. of the said schedule as if that committee and Part II. of the said schedule had been referred to in this section instead of the Company and Part I. of the said schedule.

53. The time limited by the Midland Railway (West Riding Lines) Act 1898 for the purchase of lands for the purposes of the railways by that Act authorised is hereby extended till the twenty-fifth day of July one thousand nine hundred and four. Extension of time for purchase of certain lands.

54. The period limited by the Midland Railway (West Riding Lines) Act 1898 for the completion of the railways by that Act authorised is hereby extended for a period of three years from the twenty-fifth day of July one thousand nine hundred and three and sections 30 and 31 of that Act shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act : Extension of time for construction of West Riding Lines.

If the said railways be not completed within the said period of three years then on the expiration of that period the powers by this Act granted to the Company for making and completing the same respectively or otherwise relating thereto shall cease except as to so much thereof respectively as shall then be completed.

A.D. 1901.

Restrictions
on displacing
persons of
labouring
class.

55.--(1) The Company (which expression shall in this section be deemed to include the Norfolk and Suffolk Committee and the Midland and Great Northern Committee) shall not under the powers of this Act or under the powers of any former Act extended by this Act purchase or acquire in any borough or other urban district and elsewhere than in any borough or urban district in any parish ten or more houses which on the fifteenth day of December next before the passing of this Act or of the former Act by which the purchase or acquisition was originally authorised were or have been since that day or shall hereafter be occupied either wholly or partly by persons belonging to the labouring class as tenants or lodgers unless and until the Company—

- (A) Shall have obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the said fifteenth day of December or for such number of persons as the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and
- (B) Shall have given security to the satisfaction of the Local Government Board for the carrying out of the scheme.

(2) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced:

Provided that the Local Government Board may dispense with the last-mentioned requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the above-mentioned requirement shall be enforceable by a writ of Mandamus to be obtained by the Local Government Board out of the High Court.

A.D. 1901.

(5) If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Company may appropriate any lands for the time being belonging to them or which they have power to acquire and may purchase such further lands as they may require and for the purpose of any such purchase sections 176 and 297 of the Public Health Act 1875 shall be incorporated with this Act and shall apply to the purchase of lands by the Company for the purposes of any scheme under this section in the same manner in all respects as if the Company were a local authority within the meaning of the Public Health Act 1875 and the scheme were one of the purposes of that Act.

(7) The Company may on any lands belonging to them or purchased or acquired under this section or any Provisional Order issued in pursuance of this section erect such dwellings for persons of the labouring class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid and may apply for the purposes of this section to which capital is properly applicable or any of such purposes any moneys which they may be authorised to raise or apply for the general purposes of their undertaking :

Provided that all lands on which any buildings have been erected or provided by the Company in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment :

Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as they may see fit.

(8) Notwithstanding anything to the contrary in section 157 of the Public Health Act 1875 the provisions of that section and of sections 155 and 156 of the same Act shall apply to buildings

A.D. 1901. erected or provided by the Company for the purpose of any scheme under this section.

(9) The Local Government Board may direct any inquiries to be held which they may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of this section and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(10) The Company shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

(11) Any houses purchased or acquired by the Company for or in connexion with any of the purposes of this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the labouring class within five years before the passing of this Act and for which houses no substitutes have been or are directed to be provided by any scheme approved by the Local Government Board under the powers of any previous Act relating to the Company shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the fifteenth day of December last by the same number of persons belonging to the labouring class as were occupying the said houses at the date of their acquisition. Provided that if the Local Government Board are unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Local Government Board they might have been sufficient to accommodate.

(12) For the purposes of this section the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them and the expression "house" means any house or part of a house occupied as a separate dwelling.

56. The Company may notwithstanding anything to the contrary in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Company with which that Act is incorporated retain and hold any lands belonging to them which have not yet been applied to the purposes of the Company or sold or disposed of by them for the periods following (that is to say) As regards such of the said lands as are situate near to or adjoining any railway or station of the Company or as the Company may be of opinion that they may require for the purposes of stations sidings or other conveniences for the period of ten years from the passing of this Act and as regards the other of the said lands for the period of two years from the passing of this Act:

A.D. 1901
—
Extending
time for sale
of certain
superfluous
lands.

But the Company shall at the expiration of such respective periods of ten years and two years sell and dispose of all such parts of those lands respectively as shall not then have been applied to or are not then required for the purposes of their undertaking as superfluous lands.

57. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise by the creation and issue of new preferred converted ordinary stock and new deferred converted ordinary stock or of Midland Railway two and a half per centum perpetual preference stock such sums of money as they shall think necessary not exceeding nine hundred thousand pounds exclusive of the other moneys which they are or may be by any other Act or Acts of Parliament authorised to raise If and so far as any such moneys are raised by the creation and issue of new preferred and new deferred converted ordinary stock the Company shall raise the same by the creation and issue of the said stocks in equal proportions And any preference stock created under the powers of this section shall be deemed to be part of and shall rank *pari passu* with and shall confer the like privileges and shall bear the same dividend and be subject to the like restrictions as the existing Midland Railway two and a half per centum perpetual preference stock.

Power to
Company
to raise
additional
money by
creation of
stock.

58. Except as by or under the powers of this Act otherwise provided all new preferred and new deferred converted ordinary stock issued under the powers of this Act shall in proportion to the amount of stock held by the same person at the same time entitle the respective holders of such new stock to the same dividends and profits and confer on them the like qualifications and the like rights of voting as the like amount paid up on the existing stock of the Company other than and except stock to which any guaranteed or

Qualifica-
tions of new
stock.

A.D. 1901. preferential dividend of a fixed amount without further participation in the profits of the Company shall have been assigned.

Power to
borrow.

59. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking or raise by the creation and issue of debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 55 of the Midland Railway Act 1894 any sum or sums not exceeding in the whole one third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by stock:

But no part thereof shall be borrowed until the whole of the capital stock at the time issued shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock has been issued and accepted and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid in reference to such capital has been given which certificate shall be sufficient evidence thereof.

Provisions
with respect
to appoint-
ment of a
receiver.

60. Every provision in any Act passed before the present session of Parliament whereby the Company is authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a receiver for enforcing payment by the Company of arrears of interest or principal or principal and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under any such provision.

The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver And in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Existing
mortgages
to have
priority.

61. All mortgages and bonds granted by the Company in pursuance of the powers of any Act of Parliament passed before the passing of this Act and which shall be subsisting at the time of the passing thereof shall during the continuance of such mortgages and bonds and subject to the provisions of the Acts under which such mortgages and bonds were respectively granted have priority over any mortgages to be granted by virtue of this Act And

nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. A.D. 1901.

62. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied only to the purposes of this Act and of any other Act of the present session of Parliament and to the general purposes of the undertaking of the Company being in each case purposes to which capital is properly applicable. Application of moneys.

63. The Company may apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable. Company may apply corporate funds.

64. The Norfolk and Suffolk Committee the Great Eastern Railway Company the Midland and Great Northern Committee and the Great Northern Railway Company respectively may apply to the purposes of this Act in which they are respectively interested and to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable. Power to other companies and committees to apply funds.

65. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him But nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845. Interest not to be paid on calls paid up.

66. The Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.

67. Nothing herein contained shall authorise the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description Saving rights of Crown.

A.D. 1901. — belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners and such Board are hereby respectively authorised to give) neither shall anything herein contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Saving
rights of
duchy of
Lancaster.

68. Nothing contained in this Act shall extend or operate to authorise the Company to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His duchy of Lancaster without the consent in writing of the chancellor for the time being of the said duchy first had and obtained (which consent the said chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said duchy.

Provisions
as to general
Railway
Acts.

69. Nothing in this Act contained shall exempt any of the companies or committees upon whom powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies or committees respectively.

Costs of
Act.

70. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

A.D. 1901.

PART I.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED TO BE
TAKEN BY THE COMPANY.

No. on deposited Plans.	Parish or other Area.	Description of Property.
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ICKLES VIADUCT WIDENING.

11	Borough of Rotherham -	Watercourse.
16	Ditto -	Land shed and railway siding.
17	Ditto -	Land and shed.
21	Ditto -	Vacant land.

SHEFFIELD AND ATTERCLIFFE WIDENING.

115	City of Sheffield -	Yard and outbuildings.
118	Ditto -	Stable.
442	Ditto -	Occupation road.
443	Ditto -	House.
444	Ditto -	Yard and outbuildings.
445	Ditto -	Store yard.
445A	Ditto -	Sheds.
446	Ditto -	Mill-race.
447	Ditto -	River bank.
447A	Ditto -	Land.
448	Ditto -	Garden telephone posts and wires.

PART II.

DESCRIBING PROPERTY OF WHICH PART ONLY IS REQUIRED TO BE TAKEN
BY THE MIDLAND AND GREAT NORTHERN COMMITTEE.

No. on deposited Plans.	Parish or other Area.	Description of Property.
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ADDITIONAL LANDS AT FERRY.

5	Parish of West Walton -	Orchard.
6	Ditto -	Land and sheds.
7	Ditto -	Orchard.

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